IN THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI BENCH (COURT- III)

CA (CAA) -116/(ND)/2022

IN THE MATTER OF SCHEME OF ARRANGEMENT:

BETWEEN

CARGO SERVICE CENTER SKILL & TRAINING ACADEMY PRIVATE LIMITED

.....TRANSFEROR COMPANY

(APPLICANT COMPANY-1)

AND

DELHI CARGO SERVICE CENTER PRIVATE LIMITED

.....TRANSFEREE COMPANY

(APPLICANT COMPANY – 2)

Order Delivered on: 02.01.2023.

SECTION: 230 – 232 of the Companies Act, 2013

Coram:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI (TECHNICAL)

For Applicant: Adv. Niraj Kumar, Mr. Pranav Vyas, Mr. Satendra K Rai, Mr. Pravar Veer Misra, Advocates.

ORDER

PER: BACHU VENKAT BALARAM DAS, MEMBER (JUDICIAL)

1. This petition has been filed jointly by the 2 Applicant Companies under Sections 230 and 232 of the Companies Act, 2013 read with Rules 3 & 5 of the Companies Act, 2013, the Companies (Compromises, Arrangements and Amalgamations) for the purpose of approving the Scheme of Amalgamation of Cargo Service Center Skill & Training Academy Private Limited with Delhi Cargo Service Center Private Limited. The copy of the scheme has been placed on record.

2. The present petition has been filed by the Transferee Company and Transferor Company (hereinafter called "the Petitioner Companies"). It is represented that the registered office of the Petitioner Company is situated in Delhi, and therefore, jurisdiction lies with this Tribunal.

   Brief description of the petitioner companies:-

   - **Cargo Service Center Skill & Training Academy Private Limited** (Applicant Company No. 1)

   I. Cargo Service Center Skill & Training Academy Private Limited (herein after referred to as "Transferor Company" or "Applicant Company - 1') bearing CIN U74999DL2013PTC404222. The Registered office of the Company is presently situated at Gate -5, Air Cargo Complex Cargo Terminal -2 IGI Airport, New Delhi - 110037 India. The Authorized Capital of the Applicant Company- I is Rs. 9500000/- The Issued, paid-up and subscribed capital of the Applicant Company- I is Rs. 4600000/-.

II. The company has 2 shareholders. All the shareholders have given their consents / NOC by way of Affidavits for the proposed Scheme of Arrangement. The company has one secured creditors. The company has 6 unsecured creditors.

- **Delhi Cargo Service Center Private Limited** (Applicant Company No. 2)

I. **Delhi Cargo Service Center Private Limited** "Transferee Company" or "Applicant Company - 2") bearing CIN U74900DL2009PTC196125 was originally incorporated on 18 November, 2009 under the Companies Act. 2013 in the name and style of Delhi Cargo Service Center Private Limited and certificate of incorporation was obtained from Registrar of Companies C'ROC"), Delhi. The Registered office of the Company is presently situated at Gate -5, Air Cargo Complex Cargo Terminal -2 IGI Airport, New Delhi - 110037 India. The Authorized Capital of the Applicant Company-2 is Rs. 700000000/-. The Issued, Paid-Up And Subscribed Capital of the Applicant Company-2 is Rs. 568728000/-.

II. The company has 2 shareholders. All the shareholders have given their consents / NOC by way of affidavits for the proposed Scheme of Arrangement. The company has 1 secured creditor. The company has 98 unsecured creditors.

3. Mr. Niraj Kumar, Ld. Counsel appearing for the Applicant has submitted that the Transferor Company has two equity shareholders and both of them have given their consent to this scheme. He has also submitted that the Transferee Company has two equity shareholders and both of them have given consent to the present scheme. Further the Transferor Company and the Transferee Company have one secured creditor each. It is also submitted that the Transferor Company has a sister concern of the Transferee Company. the merger of the two companies will resulting in operational efficiencies and will enable the Transferee company to integrate the skill development and training function and create better synergy efficiency.

4. It is submitted that no investigation proceedings are pending against the Applicant Company under Section 235-250 of the Companies Act 1956 and other Applicant provision of Company here 2013.

5. Mr. Niraj Kumar, Ld. Counsel has therefore prayed for the following:-

   (i) To pass an order for dispensing with the requirement of holding the meetings of the shareholders of both, the Transferor Company and the Transferee Company;

   (ii) To pass necessary orders and directions for convening the meetings of the secured creditors of the transferor Company and the Transferee Company;

   (iii) To pass necessary orders and directions for convening the meetings of the secured and unsecured creditors of the Transferor Company and the Transferee Company;

6. Having heard the submissions made by the Ld. Counsel and having perused the record placed on record, we pass the following directions:-

1. Direct for dispensing with the requirement of holding the meetings of the shareholders of both, the Transferor Company and the Transferee Company;
2. Direct for convening the meetings of the secured creditors of the transferor Company and the Transferee Company;
3. Direct for convening the meetings of the secured and unsecured creditors of the Transferor Company and the Transferee Company;

We further direct that the meeting of the secured creditors of Transferor Company and the Transferee Company be held at 11:00 AM on 16.02.2023, in accordance with the procedure laid down in Rules and MCA notifications.

And the meeting of the unsecured creditors of Transferor Company and Transferee Company be held at 11:00 AM on 17.02.2023, in accordance with the procedure laid down in Rules and MCA notification.

7. The quorum of the meeting of the unsecured and secured creditors shall not be less than 75% of the value provided under Section-230(6) of the Act.
8. The first motion is **allowed**.

-Sd-

(ATUL CHATURVEDI)
(MEMBER TECHNICAL)

-Sd-

(BACHU VENKAT BALARAM DAS)
(MEMBER JUDICIAL)